APPROVED ON OCTOBER 21, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

Legal Counsel Update: October 15, 2026
10:00 a.m. – Board of Commissioners Conference Room

Attending: Commissioners Ron A. Smith; Colene M. Martin; Gary L. Richardson; Wally Hicks, Legal Counsel; and Nikole Guzman, Recorder

Legal Counsel Update

1. **Declaration of Potential Conflicts of Interest**

   Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest regarding the matters before the Board.

2. **RFP for Contracted Attorney Services**

   Wally Hicks, Legal Counsel, reported that the County issued the RFP for contracted attorney services and received a response from Christian Boenisch, Esq., former Yamhill County Counsel. Mr. Boenisch summarized his experience, including approximately 13 years as Yamhill County Counsel, prior service as a deputy county counsel, private practice, in-house counsel work, and more than seven years with the Oregon Department of Justice. The Board discussed the anticipated relationship between outside counsel, County Legal Counsel, and the Board, including the need for outside counsel to exercise professional discretion when representing the County and Board. Mr. Hicks recommended a one-year personal services contract beginning at approximately 60 hours per month. Mr. Boenisch's proposal identified an hourly range of $175 to $225; the Board discussed using the County's established government attorney rate while separately addressing travel time. Mr. Hicks stated the contract would be paid from the Legal Counsel budget and would cost less than filling another staff attorney position. Without objection, the Board authorized Mr. Hicks to negotiate and enter into the personal services contract with Mr. Boenisch substantially on those terms.

3. **Resolution No. 2026-039; In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties' Federal Funding and False Claims Act Exposure**

   Wally Hicks, Legal Counsel, presented Resolution No. 2026-039 and reviewed the Board's prior discussions concerning potential County exposure when state and federal legal requirements conflict with conditions attached to federal funding. The Board reviewed the final draft and agreed to amend paragraph C of the resolved section to include County "officers and employees" among those for whom the State would be asked to provide defense and indemnification against False Claims Act exposure. The Board noted that the proposed resolution had previously been discussed at Weekly Business Sessions and had been publicly available for comment. *Commissioner Richardson moved to approve Resolution No. 2026-039, In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties' Federal Funding and False Claims Act Exposure, as amended to include "officers and employees." Commissioner Martin seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.*

Chair Ron Smith called for Executive Session at 10:17 a.m. pursuant to ORS 192.660(2)(e), to conduct deliberations with persons designated by the governing body to negotiate real property transactions, and ORS 192.660(2)(h), to consult with counsel concerning the legal rights and duties of the County regarding current litigation or litigation likely to be filed.

Additional Attendees: Wally Hicks, Legal Counsel, Christian Boenisch, Legal Counsel, Stephanie Watson, Paralegal, Helene Lulich, Property Manager, Michael Crissafulli, Airports Manager, and Rob Brandes, Public Works.

4. Executive Session

a. Verizon Wireless Ground Lease Extension - Fairgrounds - ORS 192.660(2)(e)

b. Real Property in Relation to the Sale of the Flying Lark - ORS 192.660(2)(e)

c. Michael Polen v. Josephine County Public Works; Case No. 26SC27080 - ORS 192.660(2)(h)

d. Butterfield (Estate of) v. Wellpath LLC, et al.; U.S. District Court Case No. 6:21-cv-00671-CL - ORS 192.660(2)(h)

Executive Session adjourned at 11:18 a.m.

Legal Counsel Update Continued

5. Verizon Wireless Ground Lease Extension - Fairgrounds

The Board reconvened in Open Session at 11:18 a.m. The Board directed Legal Counsel and staff to proceed with the Verizon Wireless ground-lease negotiations as discussed. No formal motion was taken.

6. Real Property in Relation to the Sale of the Flying Lark

The Board directed Legal Counsel and staff to continue the Flying Lark real-property work and negotiations as discussed, including pursuing additional time with River Valley Church if appropriate. No formal motion was taken.

7. Michael Polen v. Josephine County Public Works; Case No. 26SC27080

The Board directed Legal Counsel to proceed with defending the case in Small Claims Court. No formal motion was taken.

8. Butterfield (Estate of) v. Wellpath LLC, et al.; U.S. District Court Case No. 6:21-cv-00671-CL

The Board directed Legal Counsel to proceed as recommended in the Butterfield matter. No formal motion was taken.

9. Additional Subjects/Matters from Commissioners – ORS 192.640(1)

Commissioner Richardson requested that documents presented to the Commissioners for signature contain all required department and other signatory approvals before reaching the Board, so the Commissioners serve as the final signers.

There being no further business, the Legal Counsel Update adjourned at 11:20 a.m.